

Court No. - 3

Case :- WRIT - C No. - 65731 of 2011

Petitioner :- M/S S. S. Ice And Cold Storage

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena,Deepak Saxena

Respondent Counsel :- C. S. C.,Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Vinay Kumar Mathur,J.

Let it appear on 23.11.2011 in the supplementary list of fresh cases.

Learned counsel for the respondent may seek instructions in the meantime.

Order Date :- 17.11.2011

Jaideep/-

Court No. - 3

Case :- WRIT - C No. - 65731 of 2011

Petitioner :- M/S S. S. Ice And Cold Storage

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena,Deepak Saxena

Respondent Counsel :- C. S. C.,R.K.Mishra

Hon'ble Amitava Lala,J.

Hon'ble Pradeep Kumar Singh Baghel,J.

As prayed for, let it appear on 28.11.2011 in the supplementary list of fresh cases.

Order Date :- 23.11.2011

Gss

Court No. - 9

Case :- WRIT - C No. - 65731 of 2011

Petitioner :- M/S S. S. Ice And Cold Storage

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena,Deepak Saxena

Respondent Counsel :- C. S. C.,R.K.Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed, put up as fresh before the appropriate Bench on 1.12.2011.

Order Date :- 28.11.2011

P.P.

Court No. - 21

Case :- WRIT - C No. - 65731 of 2011

Petitioner :- M/S S. S. Ice And Cold Storage

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena,Deepak Saxena

Respondent Counsel :- C. S. C.,R.K.Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Vinay Kumar Mathur,J.

Heard learned counsel for the petitioner and Sri R.K. Mishra learned counsel appearing for respondents No.1, 2 and 3.

By this writ petition, the petitioner has prayed for quashing the assessment order dated 21st October, 2011 by which the Executive Engineer has assessed an amount of Rs.83,31,462/- on the basis of checking held on 25th September, 2011 of the petitioner's cold storage.

Petitioner's case in the writ petition is that there has been regular inspection and checking of the cold storage including the checking held on 18th September, 2011. It is submitted that M.R.I. report was also taken on 22nd September, 2011. On the basis of the checking held on 25th September, 2011 a provisional assessment notice dated 29th September, 2011 was given in which petitioner was assessed for theft of electricity in accordance with the provisions of U.P. Electricity Supply Code, 2005 for a maximum period of 365 days. Petitioner's case further is that after receiving the provisional assessment, petitioner filed a detail reply dated 10th October, 2011 (Annexure-7 to the writ petition).

Petitioner's reply which has been enclosed along with the writ petition runs into 43 pages and various grounds including the ground regarding regular checking and taking of M.R.I. report were taken. The assessment order has been passed on 21st October, 2011 making assessment for a period of 365 days. Although the reply of the petitioner dated 10th October, 2010 has been referred to in the order but there is no consideration of any of the grounds taken by the petitioner in his reply. Further although there is a remedy to the petitioner against the order impugned under Section 127 of the Electricity Act, 2003 but in facts of the present case where the assessment order has been issued without considering any of the grounds, we are of the view that ends of justice be served in setting aside the order dated 21st October,

2011 and permitting the respondents to pass fresh order after considering the grounds taken in the reply. The order impugned having not considered the grounds taken in the reply, the same cannot be termed as a reasoned order.

Learned counsel for the respondents submits that appropriate fresh decision shall be taken by the respondents within four weeks from the date a certified copy of this order is produced before them.

In result, the order dated 21st October, 2011 is set-aside giving liberty to the respondents to pass fresh order after considering the reply of the petitioner within a period of four weeks from the date of production of a certified copy of this order. We, however, make it clear that petitioner shall continue to pay the regular bills as and when fall due.

The writ petition is disposed of with the aforesaid directions.

Order Date :- 1.12.2011

Rakesh